

Court No. - 21

Case :- WRIT - C No. - 5215 of 2023

Petitioner :- Ramakant Kanaugiya @Vinod Kanaugiya

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Binod Kumar Yadav, Suman Kumar Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Put up as fresh on 21.2.2023 showing the name of Shri Chetan Chatterjee as counsel for the respondent No. 2

Order Date :- 15.2.2023

Sumaira

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Sri Chetan Chatterjee, learned counsel for the respondent Electricity Department prays for and is granted three days' further time to complete his instructions.

Put up as fresh on 27.02.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.2.2023

Ruhi

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Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenge the demand notice dated 27.12.2022 issued by respondent No. 2 for recovery of sum of Rs. 77,691/- from the petitioner in a case of theft of electricity.

Sri Chetan Chatterjee, learned counsel appearing on behalf of the respondent No. 2 on instructions states the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the instant petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.2.2023

Ruhi